STATE OF NEW YORK
COUNTY OF WESTCHESTER: YONKERS FAMILY COURT

IN THE MATTER OF:		
LINDA RUSSELL,	DOCKET NOS.:	V-07641-18/21S
Petitioner,		V-07641-18/21AA
- vs. -		
TARA KATELYN WALSH,		
Respondent.		
TARA KATELYN WALSH,	DOCKET NOS.:	V-07641-18
Petitioner,		O-12635-19
		O-12635-19/21K
- vs. -		V-05280-21/21A
		V-07641-18/21Z
STEPHEN GRANT RUSSELL,		V-07641-18/21V
Respondent.		

FILE NO: 154703

131 Warburton Avenue, Third Floor
Yonkers, New York 10701
November 5, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh

MASSIMO DIFABIO, ESQ.
Attorney for Linda Russell

DONNA MARIE GENOVESE, ESQ.
Attorney for the Child

ALSO PRESENT: Tara Katelyn Walsh, Petitioner
Linda Russell, Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

Public copy: the child's legal name is shown as E.V.; a private street address is removed. Otherwise unchanged.

(3:38:51 p.m.)

UNIDENTIFIED VOICE: We're on the record, Judge.

COURT OFFICER: This is numbers 3 through 10 on the calendar in matters of Walsh and Russell. Mr. Weddle, your appearance.

MR. WEDDLE: Chris Weddle, Timko and Moses, 1 North Broadway, White Plains, appearing for Tara Walsh, present in court standing to my right. Good afternoon, Your Honor.

MR. DIFABIO: Good afternoon, Your Honor. Max DiFabio for Linda Russell who's also present in court.

MS. GENOVESE: Donna Genovese, Goldschmidt and Genovese, 81 Main Street, Suite 405, White Plains, New York, 10601, for the child, E.V. Good afternoon.

COURT OFFICER: Ms. Walsh, raise your right hand. Do you swear or affirm to tell the truth?

MS. WALSH: I do.

COURT OFFICER: State your name and address for the record.

MS. WALSH: Tara Walsh, and my address is confidential.

COURT OFFICER: Okay. Ms. Russell, raise your right hand. Do you swear or affirm to tell the truth?

MS. RUSSELL: I do.

COURT OFFICER: State your name and address unless it's confidential.

MS. RUSSELL: Linda Russell, [redacted], Punxsutawney, Pennsylvania, 15767.

COURT OFFICER: Thank you.

THE COURT: Thank you.

COURT OFFICER: Be seated.

THE COURT: Good afternoon. We are here today with respect to the attorney for the child's Order to Show Cause that is seeking to prohibit the respondent father from posting, among other things, blogs and things on the internet. I do see that there is an Affidavit of Service in the file showing that Mr. Russell was filed -- was served. Does anyone know why he is not here today?

MS. GENOVESE: No. Judge, two -- there are two Order to Show Cause. One is for Mr. Walsh and -- I'm sorry, Mr. Russell, and the other one is for Ms. Russell. So there are two of them. I filed the Affidavit of Service for both motions on October 22nd.

THE COURT: And I do see that. Are you acknowledging service, Mr. DiFabio?

MR. DIFABIO: Yes, Judge. And I -- I'm not going to -- I'm going to -- I'm not going to make the legal arguments that I think the order's in effect. Not withstanding that, we'll consent to the relief.

THE COURT: Okay. Anything you want to say, Mr. Weddle?

MR. WEDDLE: No thank you, Your Honor.

THE COURT: And although this matter was scheduled for 3:30, and it's only 3:41, Mr. Russell has not appeared in court in quite some time. Normally I would give a party a fair amount of time to appear, but I think we'll proceed with the other issues that we have to address. And then if he's still not here, I'll proceed without him.

So we did have the issue that we discussed on the last court date of Ms. Walsh's finances, and I did get yesterday a financial disclosure affidavit with her tax returns. And it appears to me that Ms. Walsh is -- does not qualify for 18B counsel. So I don't know what you want to do about that, Mr. Weddle.

MR. WEDDLE: Your Honor, the -- my understanding of the statute is not -- the qualification is not based merely on income, rather -- but rather on the ability to procure legal representation. Over the course of the various litigations that Mr. Russell has brought against Ms. Walsh, she has -- she had retained private counsel in the past. She has depleted her life savings in paying for that counsel to the tune of over $120,000.00. She simply doesn't have resources. And based on her income which is

about 40-some-odd-thousand dollars a year, I don't know where she's going to find a lawyer who's willing to represent her at their hourly rate. Now the --

THE COURT: But she's -- but she gets 60 -- she gets -- her income including child support is $100,000.00 a year.

MR. WEDDLE: Child support is not income, Your Honor. That goes to the care -- I'm sorry. Respectfully that's for the care of the child. That's not to pay lawyers. Her regular income is that. She is involved in three other litigations at the moment in which she is representing herself because she cannot afford attorneys.

THE COURT: Well, I don't know what to say. Her total income is 100,000. I understand what you're saying about child support. But typically someone who makes $100,000.00 a year would be supporting their children with that $100,000.00, and that certainly would not qualify for an 18B attorney.

MR. WEDDLE: I'm sorry --

(Counsel and Client confer)

MR. WEDDLE: Judge, I don't think she's going to -- without dipping into the child support, I don't think -- I mean, if the case walked into my office, and I took a look at -- this is a third of the file, I mean, I'd want a 10 or $15,000.00 retainer up front. And she -- I don't

think that's a check that she can write.

I asked her if she could get help from her family, and she said her family does not help her. She does not receive any funds from them. So she's kind of on her own here, Judge. And so if you do remove me from representing her, she will likely have to proceed pro se in this case.

THE COURT: At this point, Mr. Russell has not appeared. He's in default. It doesn't seem like there's really much of a case. And so let me just hold off on that issue for the moment. Moving on to Mr. DiFabio and Ms. Russell's application, I thought, Mr. DiFabio, you were going to file a Grandparent Visitation Petition.

MR. DIFABIO: Your Honor, I apologize. I've been involved with some things the last few weeks. I -- it slipped my mind. I'm sorry. I will do it before the next time. In any event, Judge, I spoke to Mr. Weddle about getting some visitation for my client. She also spoke to Mr. Weddle and the attorney for the child.

She's indicated to us that she's not looking for a whole lot. She wants to proceed as if any grandmother would. With respect to any prohibitions on her posting, we consent to that. With respect to having contact with her son while she's with the child, she agrees to be prohibited from doing that. And any other restrictions that are

reasonable, she'll agree to.

She's already had the child a few times. And as I said, Judge, the first time with the internet with my client, I took that on the chin, and I sincerely believed that he was permitted to do so. And if you recall it, Judge, we went back and forth on transcripts that I thought you had said so long as my client was present, she was allowed to FaceTime Dad, et cetera. That's old news. But she's seen the child. She's no danger to the child.

She wants some reasonable access to her granddaughter like she has with her other grandchildren. Because her son, in the Court's view, may be misbehaving or not complying, she shouldn't be punished for that.

THE COURT: Mr. Weddle?

MR. WEDDLE: Oh, I'm sorry, Judge. I did not hear you. Where do I start? We don't believe --

THE COURT: Before you start, say Mr. DiFabio did say his client would agree to some restrictions --

MR. WEDDLE: Yes.

THE COURT: -- and so with that caveat that maybe we could put some appropriate restrictions in place, you could perhaps address his application.

MR. WEDDLE: Judge, a court order is only as good as my ability and willingness to enforce it. A restriction for example -- and it's -- really it's Mr. Russell that's

our concern, is that his actions in this matter have been erratic, irrational. They have been unpredictable. They have been frankly contrary to his own best interests, and we are very concerned about Ms. Russell's ability to keep Mr. Russell away from Evie until these issues can be resolved.

Also you -- the Court will remember after the last visit with Ms. Russell, Your Honor received a disturbing letter with respect to not only my client but my client's family. That's not encouraging. That doesn't foster a ground for mutual understanding, respect and cooperation. And lastly, Judge, of course, the matter's not properly before the Court, and second of all my client is a parent. She has some, I would say, weighted right to determine with whom her child associates.

THE COURT: Ms. Genovese?

MS. GENOVESE: It -- I would -- possibly it would -- might make sense -- sorry with the mask -- to start out with something that's like a virtual visit. So therefore there would be some types of control and confinement to it, but there can be some type of a visit between the grandmother and the child.

I'm assuming that the Court is going to issue a written order with respect to the motion so that there's something in writing so that it's clear. Because there are

two branches of the relief. One of them is that Respondent and also Ms. Russell or any other persons, entities and or agents acting on their behalf are restrained from recording the visits between Evie and Ms. Russell in that they're not plastered all over the internet.

Unfortunately, I have looked as recently as this morning, and this Chappaqua Poison website continues. And in fact it addresses the (inaudible) the gag order of the Court. So I have concern that things are just continuing as is rather than getting better. This posting is as of November 4th, 2021, for the Chappaqua Poison website.

It's my understanding that Mr. Russell is claiming that he doesn't own the website and that it's somehow been sold, but it continues. So I do have concerns that this is just going to continue and perpetuate itself. But possibly we could start out with something slower like at least some type of a virtual visit so that there is contact between the grandmother.

MR. DIFABIO: Your Honor, may I respond?

MS. GENOVESE: Yeah.

THE COURT: Yes.

MR. DIFABIO: I'd like to focus on my client, Linda Russell, not Mr. Russell. Ms. Russell has nothing whatsoever to do with any posting, any Chappaqua Poison or anything of the sort. With respect to the letter that Mr.

Weddle referenced, that's -- we're going over old ground again. I think we sufficiently explained that. And I think Your Honor has already formed an opinion with respect to that letter.

Finally, Judge, I'll say this. My client -- it's my understanding that prior to us appearing before you, my client was FaceTiming with Evie, occasionally. Tara was permitting that. So that ship's sailed on the virtual. She's already had in-person visits other than, other than, my client mistakenly, mistakenly having video communication with Evie. There were no issues. There were no problems.

She's capable. She's a nurse, a retired nurse. She's raised children. You can see her demeanor. She's not a monster. She huffs it all the way up here from Pennsylvania to do this. She's a responsible woman. She'll be bound by every restriction -- by any restriction you impose, Judge. And I don't think we need to go backwards in this case. She's already seen the kid and already done the virtuals. Thank you.

THE COURT: Mr. Weddle?

MR. WEDDLE: Because of what has transpired thus far, we are not confident of Ms. Russell's ability to keep her son away from Evie until the Court makes a decision. There was an order before. Mr. DiFabio argues that it was a misunderstanding with respect to the Court's direction.

I am not inclined to agree. And that's concerning to --

MR. DIFABIO: You're not going to take my word for that? It was my misunderstanding, Chris.

MR. WEDDLE: It was -- but it was in writing is the problem (inaudible). It was in writing.

THE COURT: I think --

MR. DIFABIO: I'm going to take exception to that, Judge. I read the transcript. In good faith, I brought it to the Court's attention. I brought it to Counsel's attention, and I showed passages in the transcript where I believe, Your Honor, perhaps incorrectly, I believe Your Honor permitted FaceTime access with my client, Linda, and Mr. Russell so long as my client was present.

MR. WEDDLE: (Inaudible) --

MR. DIFABIO: Obviously --

THE COURT: Things --

MR. DIFABIO: -- that was a mistake, and I've admitted to that.

THE COURT: Things involving the visits between your client and Evie wound up online. That's a fact. I am concerned that your client is controlled or bullied or fearful of Mr. Russell, and --

MS. RUSSELL: I'm not -- I'm not (inaudible).

THE COURT: -- that she can't control him. And

so if I were to come up with a solution for this access, I would have her have supervised visits. And that's not because I think she's not capable of being safe around Evie. I think she certainly is. It's that I think she can be manipulated by her son to do whatever it is he wants to do. And so I need some assurance that if there's a visit that nobody else is there, that she's not video recording it. That's what I would want.

MR. DIFABIO: Your Honor, if I may. An order would solve that issue, and I'll tell you why. Because it's very simple to do a supervised visit and follow the rules when someone's supervising it. It's when you're not being supervised, not being supervised, that it matters.

And I suggest, Judge, being she's already seen the child, give her an opportunity to see the child unsupervised. We'll know immediately if something's posted. And by the way, Judge, whatever's being posted, and I disagree that it's a fact that there was stuff shared from that visit. I think it was old stuff. Give her that opportunity --

THE COURT: Whatever it is, Mr. DiFabio, whatever it is, it was inappropriate, improper. If Mr. Weddle and --

MR. DIFABIO: But it wasn't Linda.

THE COURT: -- his client are willing to agree

for your client to have some unsupervised visits with Evie, I would say this right now on the record, if there is any violation and any sliver of anything that occurred at that visit winds up somewhere online, I will have a trial, and I will find it is not in Evie's best interest to have any contact with this grandmother.

MR. DIFABIO: (Inaudible) --

THE COURT: And I think Ms. Genovese would agree. What --

MR. DIFABIO: I would agree too.

THE COURT: -- is out there online is --

MS. RUSSELL: So would I.

THE COURT: -- horrific, inappropriate and very damaging to this child.

MR. DIFABIO: Judge, we both agree with you, that is my client and myself, both agree with that. And we would like the opportunity to show you that this can be done without any problems of that sort. In fact, I would tell my client not to even tell anyone she's visiting with the child.

THE COURT: That would be wise.

MR. DIFABIO: Sometimes I am.

THE COURT: Would you like to go see if you could work out some sort of schedule?

MR. DIFABIO: Judge, again, we're going to make

this as flexible for Ms. Walsh as possible. We don't even need a schedule. We're just asking for maybe once a month.

MS. RUSSELL: Or less.

MR. DIFABIO: Not even that. And Linda would call Tara, ideally, give her reasonable notice, and she'd come up. The child's in nursery school during the day. So Linda effectively would have a few hours with her after school and maybe a few hours during the day on the weekend, and then she'd go away. Something really simple, not taxing on anyone.

She just wants to pop in, see her granddaughter, show her some love and then go on with her life because she's living her life. She's going to be traveling. She's doing things. So she doesn't need to be burdened with a heavy schedule either.

THE COURT: Mr. Weddle, do you need some time to talk to your client?

MR. WEDDLE: No, Judge. We were speaking before the case was called and with Mr. DiFabio. My client is not reassured that Mr. Russell won't manage to insert himself into any arrangement that the Court comes up with. I mean, Mr. Russell hasn't followed a court order so far. Why would we expect him to now?

MR. DIFABIO: Your Honor, Mr. Russell has not traveled back from California during any of the visits my

client had with the child. That's a fact. He hasn't been in the state in, I would say, don't hold this -- don't hold me to -- two years minimally. The last time he was here, I think we went to court. There's no risk of Mr. Russell coming here. And Ms. Russell will have a duty to report.

THE COURT: Well, I can say this, Mr. Weddle, you heard what I just said. If there is a visit and one sliver of what happens at that visit gets posted online, that's the end. There's no -- there's just no more chances because it would be very easy -- I don't think anyone could make an argument that's what being -- what's being posted on these blogs and these websites is anything other than contrary to the best interest of this child.

MR. WEDDLE: And Your Honor -- respectfully, Your Honor, what if there's an indication that Mr. Russell has had contact with Evie during one of those visits?

MR. DIFABIO: And we admit that, Your Honor. We admit that.

THE COURT: Then that's a violation, and the visits end. And then maybe it's a supervised visit. And -- I mean, there's no -- there's not -- it's not going to be easy to go -- to move forward if there's another violation here. It's just not.

UNIDENTIFIED VOICE: Judge, (inaudible) --

THE COURT: And I don’t want -- I don't want to

sound like I'm giving endless opportunities. I don't think I am. But if Ms. Russell can assure everyone that she is not -- and like you said, Mr. DiFabio, perhaps she doesn't even tell her son, that she's not going to have him be involved in these visits, that she's not going to tell him anything that's going on, that's fine.

But as I said, if there's one tiny bit of something that winds up online that can be traced back to her visit, it's over. It is over. And Mr. Weddle can throw my words up at me if we have to come back to court on a violation.

MR. DIFABIO: And Judge, the other consideration with respect to supervision, while Mr. Russell may have means, my client does not so that would be an extra expense added to her -- and it would be -- and if we were to keep this between us, she couldn't go to him for money obviously for this reason, right? So I want to make this as simple as possible. I'm not trying to belabor this point at all.

MS. GENOVESE: I would say if the Court's considering the access to definitely put on like a geographical restriction, something clear -- that it is very clear that there can't be any recordings, and there would be no sharing of information regarding the visits so that the child is protected because these websites do still continue --

THE COURT: Right.

MS. GENOVESE: -- as recently as I said as last night, I saw more stuff on the websites --

MR. DIFABIO: We understand, Judge.

MS. GENOVESE: -- you know.

THE COURT: (Inaudible) so if you want to draft up an interim order that puts all the parameters of the visits, the geographical restrictions, the no recording, no electronic devices, you want to put down whatever you can agree to for that and leave it open as to, you know, whatever, one day per or one day every six weeks or one day every two months, however you want to do it as arranged between the parties, then you can try to do that.

MR. DIFABIO: We're happy with any geographical restriction, Your Honor. We understand the posting, and to the extent she can, my client will guard her privacy.

MR. WEDDLE: Your Honor --

THE COURT: Mr. Weddle?

MR. WEDDLE: -- can I ask a question?

THE COURT: Yes.

MR. WEDDLE: If the Court's mind is made up on this, I would ask if Ms. Genovese could see Evie promptly after that first visit. Because we're --

THE COURT: Okay.

MR. WEDDLE: -- not sure that Evie's going to be

comfortable with this.

MS. GENOVESE: That's fine.

THE COURT: Okay. So --

MS. GENOVESE: The only issue is I'm away from Tuesday to Friday next week. But then I'm back. I have a seminar that I'm going to in --

THE COURT: Okay.

MS. GENOVESE: -- Chicago.

THE COURT: So why don't you go out and try to draft something and then we'll just continue in a few minutes. Is that alright? I'm going to ask, the parties to step out, lawyers to stay on for a second.

COURT OFFICER: Okay. Parties can step out.

THE COURT: Off the record.

(Off the record, 4:01:19 p.m.)

(Whereupon, a brief recess was taken.)

(On the record, 4:29:58 p.m.)

COURT OFFICER: All parties and counsel remain the same.

THE COURT: Thank you. Yes. So I think we addressed a number of issues in our brief attorneys' conference. The order with respect to Ms. Russell's visitation is going to be worked out outside of court so Counsel can figure out what sort of language they want to put in to ensure the safety of the child, and you can

submit that order on consent.

As far as -- and I did also realize that when in the very beginning of this case I vacated the Order of Custody which was issued on default against Mr. Russell, that I probably should have said that the interim Order of Custody giving Ms. Walsh sole legal and physical custody was reinstated, but I think at this point, Mr. Weddle, maybe you can just submit a new order?

MR. WEDDLE: Yes, Your Honor.

THE COURT: So you can -- and that'll be until further order of the Court.

MR. WEDDLE: Yes, Your Honor.

THE COURT: And Mr. Genovese, you can submit the order with respect to your Orders to Show Cause. At this point, it's 4:30. It's clear that Mr. Russell's not appearing so both of those Orders to Show Cause are granted, and you may submit the orders on notice.

MS. GENOVESE: Thank you.

THE COURT: I am going to hold off on relieving Mr. Weddle as 18B counsel. I will order a forensic evaluation. But given that Mr. Russell has failed to appear in this proceeding for quite some time, I am also going to schedule an inquest January 5th at 9:30. That's in person. I think a half day would be enough for an inquest, correct?

MR. WEDDLE: Yes, I believe so, Your Honor, more than enough time.

THE COURT: Okay. Is there anything else that we need to address at --

MR. DIFABIO: No, Your Honor.

THE COURT: -- this point?

MR. WEDDLE: No, Your Honor.

MS. GENOVESE: No, Your Honor, except for the issue of my payment which I will advise the Court as to whether I'm going to make a motion to be relieved or what I'm going to do with that.

THE COURT: Okay.

MS. GENOVESE: I have not been paid anything.

THE COURT: Okay. All right. So you're certainly free to follow up in whatever way you deem to be appropriate.

MS. GENOVESE: Thank you.

MR. DIFABIO: Thank you, Your Honor. Are we excused?

THE COURT: So the -- just so that -- so we're clear, the next court date is January 5th.

MS. GENOVESE: Thank you, Judge.

MR. WEDDLE: Thank you, Your Honor.

MR. DIFABIO: Thank you, Your Honor.

MS. RUSSELL: Thank you, Your Honor.

THE COURT: You're excused.

(4:32:31 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at Yonkers Family Court, NYS, Russell v. T. Walsh and T. Walsh v. S. Russell, File #154703, multiple docket numbers, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Valeri Wilson Date: November 23, 2021

Electronic signature

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